State vs Sudhir Maan on 10 March, 2023

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.REV.P. 522/2017
   STATE
                                                                ...
                Through: Ms.Meenakshi Dahiya, APP f
                         with SI Anup Rana, PS Bind

                    versus

    SUDHIR MAAN

                    Through: None.

    CORAM:
    HON'BLE MR. JUSTICE YOGESH KHANNA
                    ORDER

% 10.03.2023

1. This petition is filed for setting aside the order dated 27.03.2017 passed by the learned Additional Session's Judge, SFTC, Dwarka Courts, New Delhi in case FIR No.390/2016 under Section 376 IPC registered at PS Bindapur, Delhi.

2. It is submitted by the learned APP for the State without analyzing the facts on record the learned ASJ on the basis of his imagination has passed the impugned order. It is also alleged the accused was discharged on flimsy ground of delay whereas the delay could have been explained during the course of trial and that even an unexplained delay would not render the case of prosecution doubtful. It was argued the delay in case of sexual assault cannot be equated with delay in a case involving other offences since various factors weigh in the mind of victim and her family members and hence it is unsafe to throw the case of the prosecution on the ground of delay in lodging of FIR.

3. Secondly, it is submitted merely a woman does not physically resist to the act of penetration shall not by reason of that fact be regarded as consenting to the sexual activity.

4. I have gone through the submissions so made as well as the impugned order wherein the accused was discharged. The judgment though has referred to delay in lodging the FIR but in fact has exonerated the accused completely on a different ground viz. the accused committed no fraud in seeking the consent of the prosecutrix and the act committed by both of them was consensual in nature. I may refer to para nos.10 to 16 of the impugned order as under:

> "10. The prosecutrix was mature enough to fully understand as to what was happening between the two. Where was the compulsion for her to establish physical relations first without ensuring that the accused was willing to perform marriage with her? In the facts and circumstances of this case, it was an act of promiscuity On the part of the prosecutrix and not an act induced by misconception of fact. Though not referred to or relied upon, in similar circumstances, in judgment - Gaurav Maggo v. State. Crl. A. No.369/20l4, decided by High Court of Delhi on 29.05.2015, it has been held as under:
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> "There is nothing in her evidence to demonstrate that she was incapable of understanding the nature and implications of the act which she consented to. Her consent for physical relations (if any) was an act of conscious reason. If a fully grown up lady consents to the act of sexual intercourse on a promise to marry and continues to indulge in such activity for long, it is an act of promiscuity on her part and not an act induced by misconception of fact."

11. Prosecutrix was medically examined firstly on 28.05.20l6. Doctor has written on the MLC that she did not find any external injury mark on the person of the prosecutrix at the time of the examination, there is no medical evidence to support the version of the prosecutrix that she was raped as she was taken to the hospital after considerable delay. Accused was also medically examined by doctor on 30.09.2016 at DDU Hospital, New Delhi which was a sheer formality.

12. It is the settled law that order framing the charges does substantially affect the persons and the Court must not automatically frame the charge merely because the prosecution authorities, by relying on the documents referred to in Section 173 Cr.PC, consider it proper to institute the case.

13. Though not referred to or relied upon, it has been observed by Madhya Pradesh High Court in judgment - Sunder Singh.v. State of M.P., Cr.R No.607/2013 decided Oft 3.9.2013 as under:

> "42. The prosecution, having regard to the right of an accused to have a fair investigation, fair inquiry and fair trial as adumbrated under Article 21 of the Constitution of India, cannot at any stage be deprived of taking advantage of the materials which the prosecution itself have placed on record. If upon perusal of the entire materials on record, the court arrives at an opinion that two views are possible, charges can be framed, but if only one and one view is possible to be taken favouring the accused, the court shall not put the accused to harassment by asking him to face a trial. Please see: State of Maharashtra v. Som Nath (1996) 4 SCC 659. In the case at hand, if the Court allowed to asking applicant face the trial on above discussed evidence, definitely it will amount to put the applicant for harassment."

14. Though not referred to or relied upon, in judgment- Jayanti Rani Panda v. State of W.B.1984 Crl. Law Journal 1535 it has been held that if a grown up girl has consented to sexual intercourse with a person who held out false promise to marry her it would not amount to consenting under any misconception of fact under Section 90 IPC and sexual intercourse by the man under these

circumstance would not be aft offence of rape as defined in Section 375 IPC. Though not referred to or relied upon, in similar circumstances, in judgment - State v. Anupam Bhardwaj, Criminal Revision P, No, 4/2017, decided on 3.1.2017, our High Court of Delhi speaking through Hon'ble Mr.Justice Vipin Sanghi has upheld the Order of the trial court discharging the accused in a rape case.

15. After examining the documentary as well as oral evidence which the prosecution proposes to adduce to prove the guilt of the accused, even if fully accepted, before it is challenged by cross-examination or rebutted by defence evidence, if any, is not showing that accused committed the alleged offence for which they are being prosecuted.

16. Considering the facts and circumstances of this case, after sifting and weighing the evidence for the limited purpose of finding out whether or not a prima facie case is made out against the accused, I am of the opinion that the materials placed before the Court do not disclose the grave suspicion against the accused for framing a charge against him for committing offence punishable under Sections 376 IPC. Accordingly, accused in the present case is discharged for the offence punishable u/s. 376 IPC. His personal bond is cancelled and surety is discharged. In terms of Section 437(A) Cr.P.C., accused is directed to furnish personal bond in the sum of Rs.25,000/- with one surety in the like amount for a period of six months for his appearance before the High Court of Delhi in the event the prosecution wishes to challenge the present Order by filing the appropriate petition in the High Court."

5. The facts do show the prosecutrix when entered into relationship with the respondent/accused she was already a married lady having two kids and hence was not competent to marry, thus cannot allege she fell into physical relation purely on the pretext of marriage. It is rather noted in the impugned judgment the matter was even otherwise, settled between the parties and even a quashing petition was filed before this Court but was withdrawn since offence was serious. Even the noting from the bail order was also quoted stating interalia, she lodged the FIR due to misunderstanding between the two.

6. In Naim Ahamed vs. State (NCT of Delhi) CRL.A.257/2023 decided on 30.01.2023, it was held:

> "The prosecutrix being a married woman and the mother of three children was matured and intelligent enough to understand the significance and the consequences of the moral or immoral quality of act she was consenting to. Even otherwise, if her entire conduct during the course of such relationship with the accused, is closely seen, it appears that she had betrayed her husband and three children by having relationship with the accused, for whom she had developed liking for him. She had gone to stay with him during the subsistence of her marriage with her husband, to live a better life with the accused. Till the time she was impregnated by the accused in the year 2011, and she gave birth to a male child through the loin of the accused, she did not have any complaint against the accused of he having given false promise to marry her or having cheated her. She also visited the native place of the accused in the year 2012 and came to know that he was a married man having children also, still

> she continued to live with the accused at another premises without any grievance. She even obtained divorce from her husband by mutual consent in 2014, leaving her three children with her husband. It was only in the year 2015 when some disputes must have taken place between them, that she filed the present complaint. The accused in his further statement recorded under Section 313 of Cr.P.C. had stated that she had filed the complaint as he refused to fulfill her demand to pay her huge amount. Thus, having regard to the facts and circumstances of the case, it could not be said by any stretch of imagination that the prosecutrix had given her consent for the sexual relationship with the appellant under the misconception of fact, so as to hold the appellant guilty of having committed rape within the meaning of Section 375 of IPC."

7. In Prashant Bharti vs State NCT of Delhi Crl.Appeal No.175/2013 decided on 23.01.2013, Hon'ble Apex Court noted:-

> 16. The factual position narrated above would enable us to draw some positive inferences on the assertion made by the complainant/prosecuterix - against the appellant-accused (in the supplementary statement dated 21.2.2007). It is relevant to notice, that she had alleged, that she was induced into a physical relationship by Prashant Bharti, on the assurance that he would marry her. Obviously, an inducement for marriage is understandable if the same is made to an unmarried person. The judgment and decree dated 23.9.2008 reveals, that the complainant/prosecuterix was married to Lalji Porwal on 14.6.2003. It also reveals, that the aforesaid marriage subsisted till 23.9.2008, when the two divorced one another by mutual consent under Section 13B of the Hindu Marriage Act. In her supplementary statement dated 21.2.2007, the complainant/prosecuterix accused Prashant Bhati of having had physical relations with her on 23.12.2006, 25.12.2006 and 1.1.2007 at his residence, on the basis of a false promise to marry her. It is apparent from irrefutable evidence, that during the dates under reference and for a period of more than one year and eight months thereafter, she had remained married to Lalji Porwal. In such a fact situation, the assertion made by the complainant/prosecuterix, that the appellant-accused had physical relations with her, on the assurance that he would marry her, is per se false and as such, unacceptable. She, more than anybody else, was clearly aware of the fact that she had a subsisting valid marriage with Lalji Porwal.

Accordingly, there was no question of anyone being in a position to induce her into a physical relationship under an assurance of marriage. If the judgment and decree dated 23.9.2008 produced before us by the complainant/prosecuterix herself is taken into consideration alongwith the factual position depicted in the supplementary statement dated 21.2.2007, -it would clearly emerge, that the complainant/prosecuterix was in a relationship of adultery on 23.12.2006, 25.12.2006 and 1.1.2007 with the appellant-accused, while she was validly married to her previous husband Lalji Porwal.

In the aforesaid view of the matter, we are satisfied that the assertion made by the complainant/prosecuterix, that she was induced to a physical relationship by Prashant Bharti, the appellant-accused, on the basis of a promise to marry her, stands irrefutably falsified.

8. In view of the law discussed above coupled with admitted facts, I am of the view the impugned order is a reasoned order and does not call for any interference. The prosecutrix herself was a married woman and her marriage with another person was still subsisting when she entered into relationship with this applicant and hence was herself was not competent to marry and thus looking at her marital status, her age etc she cannot allege she was lured by the respondent. The petition has no merits and is accordingly dismissed. Pending application(s), if any, also stands disposed of.

YOGESH KHANNA, J.

MARCH 10, 2023 DU